



**Order under Section 78(11)
Residential Tenancies Act, 2006**

Citation: Interrent Holdings Manager LP v Jordan, 2025 ONLTB 95083

Date: 2025-12-10

File Number: LTB-L-089016-25-SA

In the matter of: 303, 155 LAKE SHORE DR ETOBICOKE ON M8V2A1

Between: Interrent Holdings Manager LP Landlord

And

Jamail Jordan Tenant

Interrent Holdings Manager LP (the 'Landlord') applied for an order to terminate the tenancy and evict Jamail Jordan (the 'Tenant') and for an order to have the Tenant pay the rent they owe because the Tenant did not meet a condition specified in the order issued by the LTB on October 1, 2025 with respect to application LTB-L-058114-25.

The Landlord's application was resolved by order LTB-L-089016-25, issued on October 29, 2025. This order was issued without a hearing being held.

The Tenant filed a motion to set aside order LTB-L-089016-25.

This motion was heard by videoconference on December 2, 2025.

The Landlord's Legal Representative, Daniel Abraham, and the Tenant attended the hearing.

Determinations:

1. The Landlord filed the L4 application alleging the Tenant breached order LTB-L-058114-25 issued on October 1, 2025 by failing to pay the October 2025 rent in full and on time.
2. The Tenant contested the breach submitting that he paid the October 2025 rent on September 30, 2025. The Tenant does not dispute that the payment was short but explained that he paid the outstanding amount that was posted on the Landlord's website.

3. Based on the evidence before the Board, I accept the Tenant's evidence that he short paid because he was misled by the information on the Landlord's website. The Tenant submitted a screenshot of what appears to be the Landlord's website displaying that the Tenant owed \$1,693.04 for October. The Tenant paid \$1,700.00. The Landlord's Representative was unable to explain where the \$1,693.04 came from. I find it reasonable that the Tenant would have paid only \$1,700.00 given the information provided.

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4. That being said, I find that the Tenant paid the October rent late and therefore, the Tenant failed to meet a condition specified in the order LTB-L-058114-25. I say this because the Tenant's own evidence suggests that his bank posted the transaction on October 11, 2025 [DOC-6903490]. The Tenant's obligation is to pay the rent on time and in full. The Tenant ought to have known that by paying via direct deposit, the funds would take time to clear and reach the Landlord. The Landlord posted the payment on their ledger on October 14, 2025. Based on the evidence before the Board, I find it more likely than not that the Landlord received the funds after October 1, 2025.
5. The Tenant testified that he paid the rent for November 2025 on November 28, 2025 and did not pay the \$938.78 installments towards the arrears due on October 25, 2025 and November 25, 2025. The Tenant testified that he did not make payments towards the arrears as the Landlord's maintenance personnel advised him to not bother paying the Landlord as the Landlord was in the processing of evicting him.
6. The Tenant testified that he has the funds to repay the two \$938.78 installments missed.
7. The Landlord's Representative opposed the Tenant's motion submitting that the Tenant has a history of late and non-payment and has been before the Board multiple times.
8. The evidence before the Board establishes that there were no new circumstances after the parties appeared before the Board on September 25, 2025 that led the Tenant to breach the order for October's rent.
9. Even if I accept the Tenant's evidence that the breach for October's rent was reasonable, the Tenant did not persuade me that there was a reasonable explanation why the Tenant continued to breach the order with the late payment for November's rent and the nonpayment of the two arrears installments.
10. The Tenant submitted he had personal issues associated with the storm that recently hit Jamaica and took time to deal with those issues but provided no clarification or details or any documentary evidence to establish the storm had any financial impact on the Tenant. I am also not persuaded that the Tenant was advised by an employee of the Landlord to not pay the Landlord. In my view, I find it unlikely that an employee of the Landlord would tell a tenant not to pay the Landlord.

11. The Tenant conceded that he has been before the Board multiple times. Given the history and the fact that the Tenant acknowledged he would not be able to pay the December's rent in full until December 11, 2025, I find that that it would be unfair to set aside order LTB-L-089016-25. As such, the Tenant's motion is denied.
12. With respect to when to lift the stay, the Tenant requested the Board delay the eviction until March 31, 2026. The Tenant provided no compelling circumstances to delay the eviction for that long. The Tenant is employed and lives in the rental unit alone.
13. However, given the relative long tenancy and the fact that the Landlord holds a last month's rent deposit, I find it reasonable to give the Tenant some time to secure alternative housing and am of the view that a brief delay will not unduly prejudice the Landlord. As such, the stay will be lifted on January 31, 2026.

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It is ordered that:

1. The motion to set aside Order LTB-L-089016-25, issued on issued on October 29, 2025, is denied.
2. The stay of order LTB-L-089016-25 is lifted on January 31, 2026.
3. Order LTB-L-089016-25 is unchanged.

December 10, 2025

Date Issued

Vicky Liu

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

